Responsible Administrator: VP Admin/Finance
Responsible Office: Human Resources
Effective Date: 09/27/2022
Approved by: President
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Crisis Leave Program for Faculty and Unclassified Staff

Policy Statement

The Crisis Leave Program is a means of providing paid leave to an eligible employee who has experienced a catastrophic illness or injury to themselves or eligible family member.

Purpose of Policy

To assist employees who, through no fault of their own, have insufficient paid leave to cover the crisis leave period.

Applicability

Faculty and Unclassified Staff

Policy Procedure

I. Definitions

A. **Crisis Leave** is leave hours donated by faculty and/or unclassified staff into a leave pool to be used by fellow faculty and/or unclassified staff who are suffering from their own serious health condition, which has caused or is likely to cause the employee to take leave without pay or to terminate employment. Faculty and/or unclassified employees may irrevocably donate annual leave and sick leave to the crisis leave pool.

B. **Serious Health Condition** is an illness, impairment, physical or mental condition, or injury caused by a serious accident on or off the job, that involves

any period of incapacity requiring absence from work, school, or other regular activities of more than ten calendar days, that also involves continuing treatment by (or under supervision of) a health care provider.

Voluntary or cosmetic treatments (such as most treatments for orthodontia or acne) that are not medically necessary are **not** "serious health conditions," unless inpatient hospital care is required. Restorative dental surgery after an accident, or removal of cancerous growths are serious health conditions provided any of the other conditions are met. Treatment for allergies or stress, or for substance abuse, are serious health conditions. Prenatal care is included as a serious condition. Routine preventative physical examinations are excluded.

C. **Leave Recipient** means a full-time employee who has a personal emergency and is selected to receive annual or sick leave from pool leave account of the employing agency and who meets one of the following qualifying circumstances:

1. The employee experiences a catastrophic illness or serious injury, that prevents the employee from performing his duties for a period of more than ten consecutive days the employee is scheduled to work, and the employee does not have sufficient annual, sick, or compensatory leave credited to the employee personally to cover the entire period of illness or injury.

2. The employee has a significant other, minor child, child who is still financially supported by the employee, or dependent parent for whom the employee is the primary caregiver who experiences a

catastrophic illness or serious injury, which that prevents the employee from performing his duties for a period of more than ten consecutive days which the employee is scheduled to work, and the employee does not have sufficient annual, sick, or compensatory leave credited to the employee personally to cover the entire period of illness or injury.

3. The employee experiences the birth or adoption of a child and does not have sufficient annual, sick, or compensatory time to cover a minimum of six weeks of parental leave immediately following the birth or adoption.

II. Crisis Leave for Faculty and Unclassified Employees

A. Crisis Leave shall be applied for by the employee and may be taken only when recommended by the Review Committee and approved by the campus President or his/her designee. The supervising health care provider must provide written documentation of the need for leave. The Review Committee may choose to require an opinion from another health care provider, especially for extended leaves.

B. To be eligible to participate in the Crisis Leave Program, an employee shall:
   1. Be a full-time faculty or unclassified staff member who is eligible to earn annual and/or sick leave;
   2. Have completed at least: (a) one academic year of service with the University if employed on an academic year basis, or (b) one fiscal year of service with the institution if employed on a 12-month basis;
   3. Have used all his/her sick, annual, and compensatory leave before requesting leave from the pool.

C. Donating employees must retain a minimum balance of 120 hours of annual and/or sick leave after donation. No employee who participates in the program may contribute more than 240 hours of his or her accrued leave every calendar year.

D. Employees who use leave from the crisis leave pool shall not be expected to pay it back. Donations come from participating employee's accrued "annual" or "sick" leave only. Donations shall only be allowed to the Crisis Leave Program pool and not to an individual participating employee.

E. Southeastern Louisiana University limits the number of hours a participating employee can draw from the Program to 240 hours per fiscal year and 800 hours per employee's total participation in the program. (The intent of this policy is to assist an employee's return to the workplace, not substitute for a long-term disability insurance policy.)

F. Hours shall be transferred from the pool as they are used.

G. Employees receiving workers compensation or benefits from a long-term disability insurance policy are not eligible to withdraw leave from the pool.

III. Compensation and Benefits

A. The maximum monetary value of the crisis leave granted shall not exceed seventy-five (75%) percent of the employee's base pay customarily received in a regularly scheduled workweek.

B. An employee on crisis leave will be considered in partial paid leave status and continue to receive benefits as appropriate.

C. While off from work on crisis leave, an employee is not eligible to accrue leave.

IV. Southeastern Louisiana University Procedures

A. The adoption of this Crisis Leave Policy or any policy subsequent to this policy shall not create a legal entitlement.

B. A Review Committee shall be appointed by the University President. This Committee shall consist of, a member from the Division of Administration and Finance, a member of the Division of University Advancement, a member of the Division of Student Affairs, a member from the Faculty Senate, and three *ex officio* members, the Director of Human Resources and the Payroll Director. The members appointed shall be eligible for participation in the program.

C. Application for use of Crisis Leave Pool (Attachment) shall be sent directly to the Office of the President, Southeastern Louisiana University.

D. Upon approval, to simplify record keeping, annual and sick leave will be converted on an hour-for-hour basis regardless of the value of the leave being donated or received. Leave will be transferred from the pool as it is needed on a per payroll basis. Leave from the pool shall be granted on a first-come, first-served basis with seniority with Southeastern being the tiebreaker.
E. If the University chooses to end the Crisis Leave Program, any accrued leave in the pool will continue to be used until depleted.

[End of Policy]

Attachment #1

Crisis Leave Program for Faculty and Unclassified Employees

Application for Use of Crisis Leave Pool

Name: _____

SSN: _____

I am requesting to use _____ hours from the Crisis Leave Pool. I certify that I meet the eligibility of the Southeastern Louisiana University Crisis Leave Program. In accordance with the Crisis Leave Policy, I have attached written documentation from my healthcare provider/physician outlining the need for leave and my personal statement explaining my request. I understand that, if approved, the maximum number of leave hours that I can draw from the Program is limited to 240 hours per fiscal year and is also limited to 800 hours total participation in the Program. I also understand that this request shall not create a legal entitlement.

Signed:_____ Date:_____

Instructions: Complete the form and attach your statements explaining your request to use hours from the Crisis Leave Pool. Forward your completed application to the Office of the President, Southeastern Louisiana University. The Crisis Leave Review Committee will review all requests and make a recommendation to the President or his/her designee.

_____ Request Approved _____ Request Denied

Signed: _____ Date:_____
President/Designee